United Nations Educational, Scientific and Cultural Organization

Intangible Cultural Heritage

ICH policies and institutions

Unit 10 PowerPoint presentation

UNESCO
Intangible Cultural Heritage Section

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

In this presentation …

Intangible heritage policies and institutions

What does the Convention say?

Legal and administrative frameworks:

- Local frameworks
- National frameworks
- International frameworks

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

What does the Convention say?

Article 13

To ensure the safeguarding, development and promotion of the ICH present in its territory, each State Party shall endeavour to:

(a) adopt a general policy …

(b) designate or establish one or more competent bodies …

d) adopt appropriate legal, technical, administrative and financial measures …

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

What can ICH-related policies and institutions do?

State action to support the safeguarding of ICH should ideally …

•Promote recognition of diversity of ICH (Article 1, Preamble),

•Promote community participation in ICH safeguarding activities (Article 15, 11(b));

•Respect the principles of human rights, sustainable development and mutual respect (Article 2.1); and

•Promote international cooperation and assistance (Articles 19-20).

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Policies and institutions can support …

- A well-coordinated and balanced implementation of the Convention at the national level
- Enabling communities to continue practicing and transmitting their ICH and, when required, to safeguard it actively
- Ensuring actions will not contribute to ‘justifying any form of political, social, ethnic, religious, linguistic, or gender based discrimination’ (OD 102)

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

An enabling environment for safeguarding - 1

- ICH-related policy, regulations and legislation (Article 13; ODs 103–105);
- Bodies to assist in safeguarding with communities (Article 13(b-c); OD 109);
- Consultative bodies or coordination mechanisms with community representation …(OD 80);
- Encouraging cooperation and networking between communities, and between communities and other stakeholders (ODs 79–80, 86 and 88);
- Protection of the rights of the communities concerned (OD 104);
- Fostering the contributions of ICH and its safeguarding to greater gender equality and to eliminating gender-based discrimination (OD 181);

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

An enabling environment for safeguarding - 2

- Documentation centres for management and access to information about the ICH (Article 13(d); OD 109);
- Building capacity for safeguarding (13(d)(i), 14, OD 82, 86, 107(k) and 109);
- Financial measures (Article 13(d) and OD 78); and
- Sharing expertise and information internationally (Articles 1(d) and 19, ODs 86–88).

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

But remember …

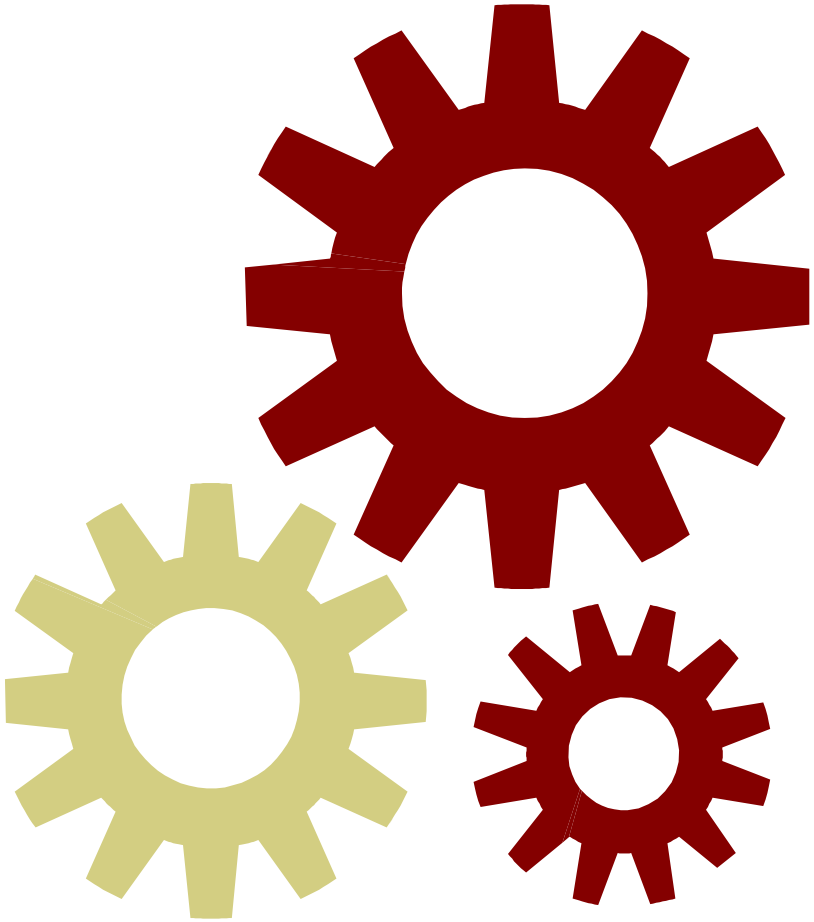
Not all institutions or organizations supporting safeguarding are necessarily established, funded or endorsed by the State.

Some community or civil society organizations may prefer to remain independent, for example.

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Legal and administrative frameworks: different levels



Local level
- Provincial or municipal laws, regulations, subsidies
- Community-based initiatives

National level
- Constitution or Bill of Rights
- ICH policy
- ICH legislation
- Ethical principles
- Subsidies
- Networks
- Intellectual property regimes
- Universities, archives, museums

International level
- ICH Convention and others
- Human rights instruments
- Intellectual property rights guidance (WIPO)
- Regional agreements
- International NGOs, C2Cs

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Yamahoko float ceremony, Kyoto Gion festival (Japan)

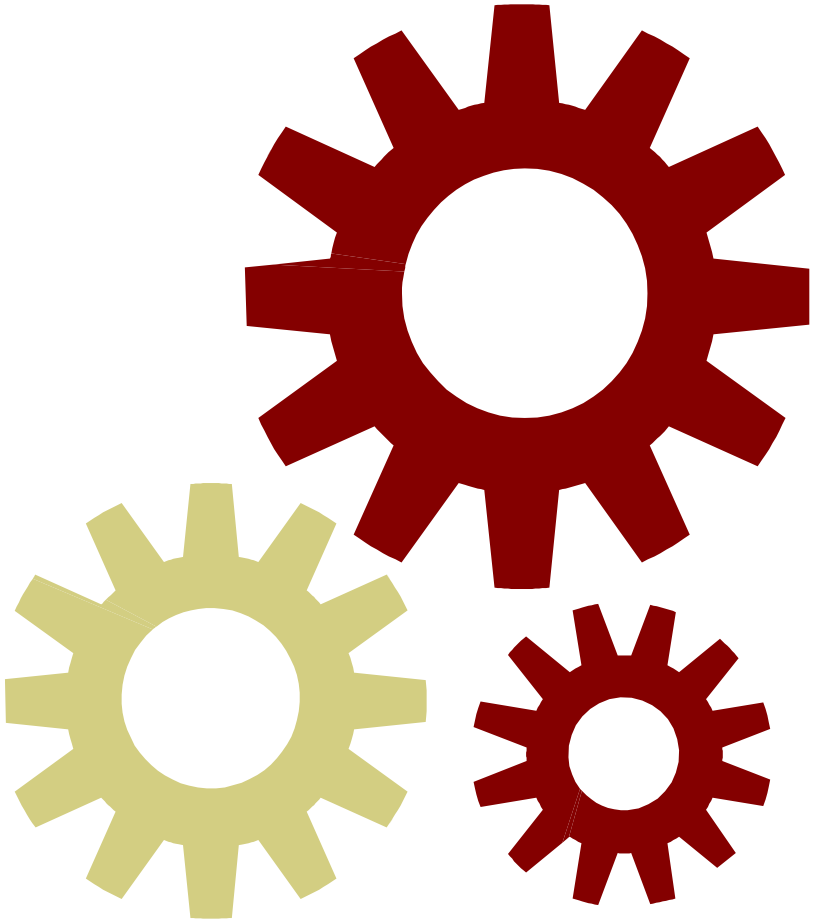
© Agency for Cultural Affairs, Japan, 2015

On July 17 every year, the Gion Festival in Kyoto in central Japan culminates in a grand procession of Yamahoko, floats known as ‘moving museums’ because of their elaborate decoration with tapestries and wooden and metal ornaments.

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Yamahoko-related frameworks



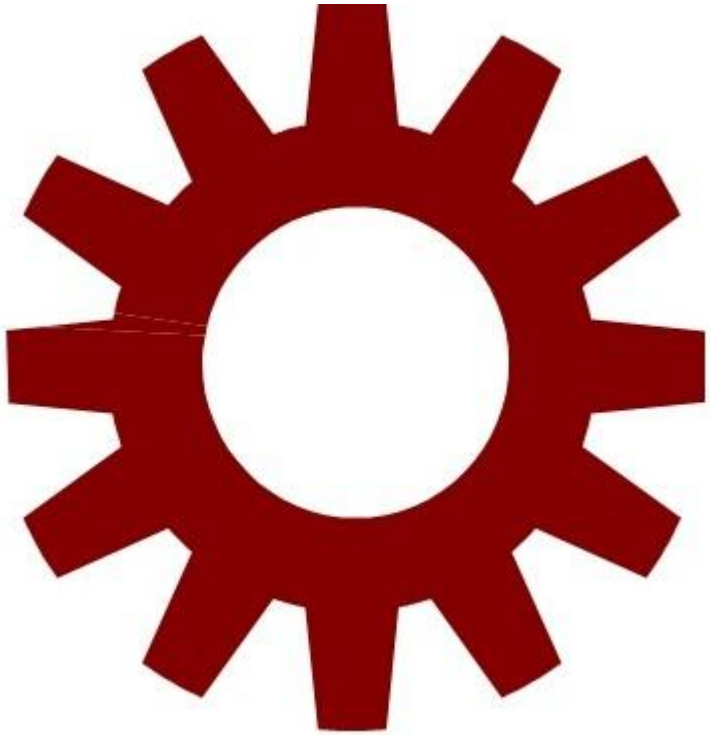
Local level
Kyoto prefectural inventory, municipal support for procession and community associations

National level
National legislation and inventory for ICH in Japan; national research institutions; budget allocations

International level
The Convention obliges Japan to report on the element as it is inscribed on the RL

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage



LOCAL FRAMEWORKS

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Example: Irrigators' tribunals (Spain)

The Council of Wise Men of the plain of Murcia
© Servicio Patrimonio Histórico de la Región de Murcia

The irrigators' tribunals of the Spanish Mediterranean coast are traditional law courts for water management. Inspiring authority and respect, these two courts, whose members are elected democratically, settle disputes orally in a swift, transparent and impartial manner.

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Example: Village Development Committees (Nepal)

Bhandara Village Development Committee

Like

Wall | Info | Photos | Discussions | Video | Events | »

Filters

Bhandara Village Development Committee Hello everyone, we are inspiring you all to upload fanphotos of Bhandara VDC...If you got one please feel free to share it...Picture can be any kind but it must be snapped in periphery of Bhandara..Please don't forget to put caption on your picture. Thank you.

17 December at 13:22 · Like · Comment

Basanta Mainali

Bhandara is a village development committee in Chitwan District in the Narayani Zone of southern Nepal.

Welcome Everyone to Official Facebook Page of Bhandara VDC. Any News, Events, pictures and ceremony happening in Bhandara VDC can be shared here. Thanx everyone.

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Example: Heemkunde Vlaanderen and FARO (Flanders, Belgium)

HEEMKUNDE VLAANDEREN

ervaren | leren | ontmoeten

Home | Ondersteuning | Vorming | Publicaties | Heemkringen | Contact

LAATSTE BERICHTEN

Campagnebeeld Erfgoeddag 2018 is bekend

Duik in de geschiedenis van religie op de 16de Nacht van de Geschiedenis

UGent zoekt getuigen verzets- en collaboratie/repressiefamilies Tweede Wereldoorlog

Van bezetting tot bevrijding: hoe maak ik een lokaal project over de Tweede Wereldoorlog?

http://www.heemkunde-vlaanderen.be/

CC BY SA

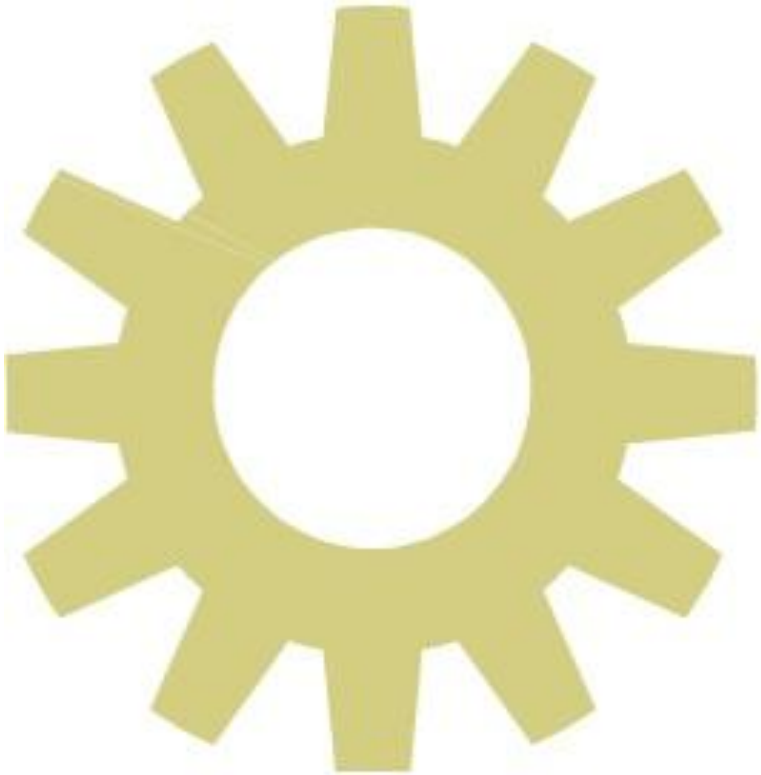
United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Local (municipal, provincial) frameworks can …

- Respond to the needs of local communities and their ICH
- Integrate ICH safeguarding with health, education and other concerns

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage



NATIONAL FRAMEWORKS

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Hopping procession (Luxembourg)

© Peuky Barone-Wagner

Each year, the Hopping Procession of Echternach (Iechternacher Sprangprëssioun) takes place in the medieval town centre of Echternach, the oldest city in Luxembourg.

This has traditionally been held on the second day after Whitsuntide (a Christian religious holiday in early summer), which is a national holiday.

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

National legal and administrative frameworks

- Developed by States Parties
- Elements of such frameworks may already exist in the State
- Others may be developed after ratification of the Convention and the implementation of the ODs.

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

National frameworks can assist in …

- Identifying, defining, inventorying and documenting ICH
- Developing and implementing concrete safeguarding activities
- Conducting training in management and capacity building for safeguarding ICH elements
- Undertaking and/or coordinating ICH-related studies
- Raising awareness about ICH
- Taking a gender-responsive approach to safeguarding measures
- Ensuring community participation and consent in all activities concerning their ICH
- Developing specific codes of ethics and tools adapted to local

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

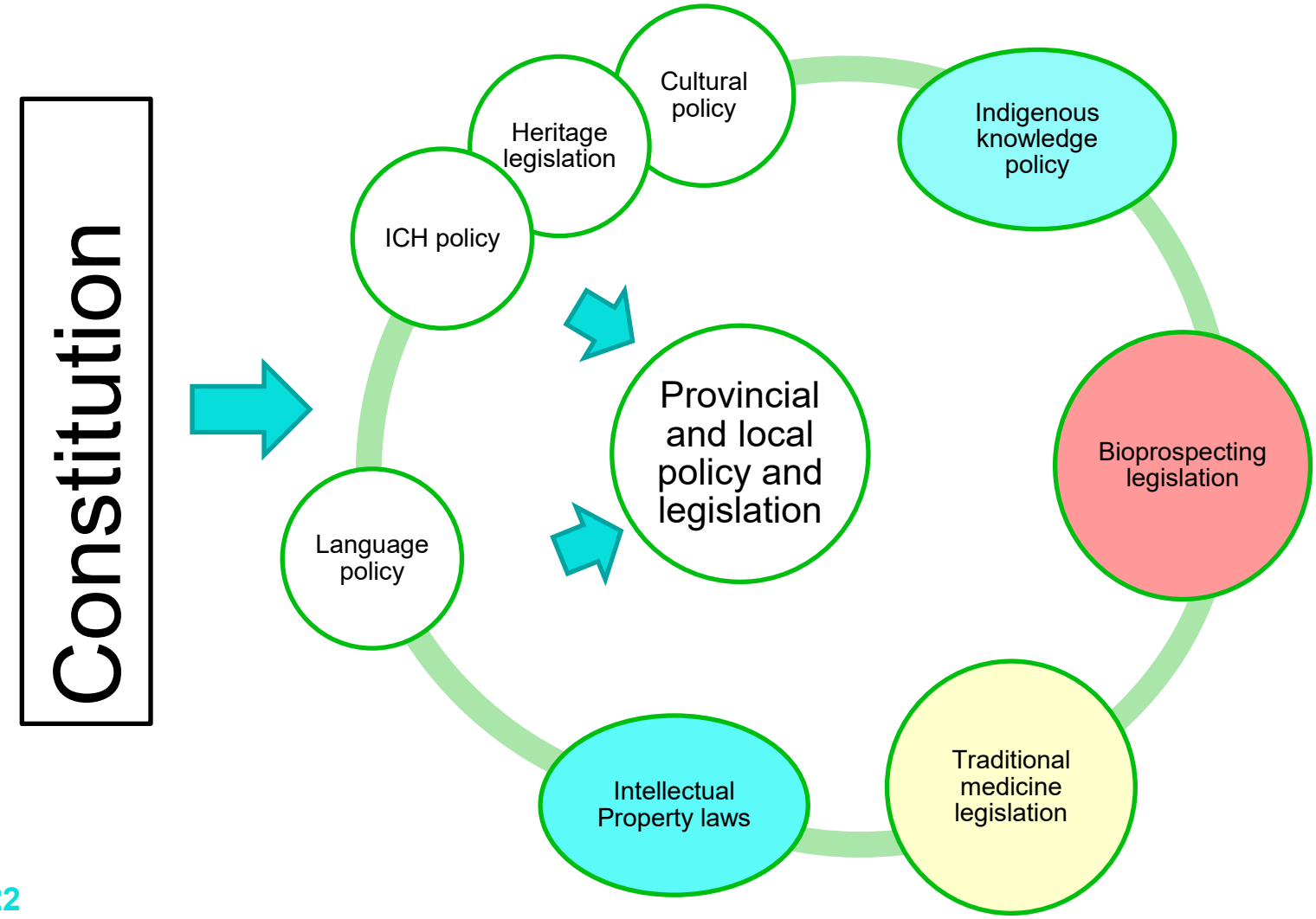
National policy-making grows

In 2011-13, 75% of reporting States (29 out of 41) had developed some kind of new ICH safeguarding policy (IOS report, 2013)

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Case study: South Africa



CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Intellectual property rights protection

- Under the Convention, States Parties are not required to establish an intellectual property rights regime protecting a community's rights over its ICH – although some do

- OD 104 says States Parties should try to ensure that community rights over their ICH are duly protected during awareness-raising and commercial activities

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Case study: the Toi Iho trademark (New Zealand)

LABEL OF AUTHENTICITY

TM. © NIAAA 1998

AUTHENTICALLY ABORIGINAL

toi iho™ maori made

toi iho™ maori co-production

toi iho™ mainly maori

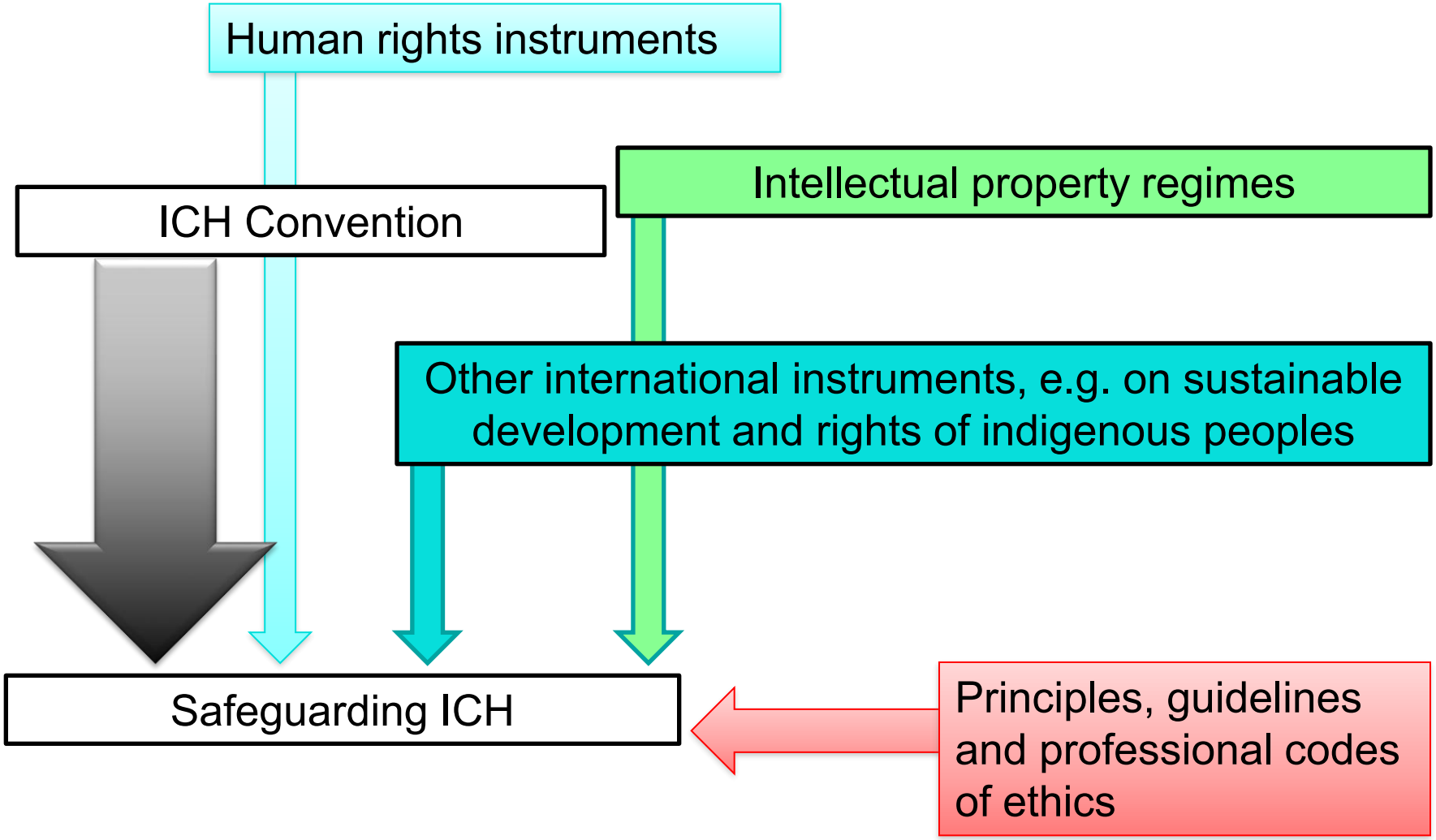
CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

LEGAL AND ADMINISTRATIVE FRAMEWORKS AT THE INTERNATIONAL LEVEL

CC BY SA

International frameworks



United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

International legal instruments

- Human rights instruments
- World Heritage Convention
- Intellectual property agreements
- UN Declaration on the Rights of Indigenous Peoples
- Convention on Biological Diversity

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Examples of codes of ethics and professional codes of conduct

- Specific codes of conduct adapted to local and sectoral conditions
- Sector specific codes of conduct e.g.:
  - Anthropology
  - Archaeology
  - Folklore studies
  - Museums / archives
  - Tourism

http://www.environment.gov.au/system/files/resources/4afff65c-00dd-4001-878b-a28d8831293a/files/ask-first.pdf

CC BY SA

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Published in 2016 by the United Nations Educational, Scientific and Cultural Organization, 7, place de Fontenoy, 75352 Paris 07 SP, France

© UNESCO 2016

This publication is available in Open Access under the Attribution-ShareAlike 3.0 IGO (CC-BY-SA 3.0 IGO) license (http://creativecommons.org/licenses/by-sa/3.0/igo/). By using the content of this publication, the users accept to be bound by the terms of use of the UNESCO Open Access Repository (http://www.unesco.org/open-access/terms-use-ccbysa-en).

The images of this publication do not fall under the CC-BY-SA licence and may not be used, reproduced, or commercialized without the prior permission of the copyright holders.

The designations employed and the presentation of material throughout this publication do not imply the expression of any opinion whatsoever on the part of UNESCO concerning the legal status of any country, territory, city or area or of its authorities, or concerning the delimitation of its frontiers or boundaries.

The ideas and opinions expressed in this publication are those of the authors; they are not necessarily those of UNESCO and do not commit the Organization.